



CHAPTER 63

An Act to authorise the London County Council to carry out certain street improvements in the vicinity of Park Lane partly on lands comprised in Hyde Park and the Green Park and partly on other lands; and for purposes connected therewith. [1st August, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Subject to the provisions of this Act, the London County Council (in this Act referred to as "the Council") are hereby authorised to carry out the following works (in this Act referred to by the names respectively given to them for the purposes of this Act by this section), that is to say—

Power of
London
County
Council to
carry out
works.

The Hyde Park carriageway. A new street starting at a point in Bayswater Road about 75 yards east of the junction thereof with Stanhope Place and ending at a point about 137 yards north of the junction of Knightsbridge and Grosvenor Place.

The Underpass. A new link, partly underground, between Piccadilly and Knightsbridge, consisting of—

The Underpass (Piccadilly approach). A new street starting by a junction with Piccadilly at a point about 50 yards east of the junction of Piccadilly and Park Lane and ending about 97 yards south-west of the junction of Piccadilly and Park Lane;

The Underpass (northern tunnel). A tunnel starting by a junction with the end of the Underpass (Piccadilly approach) and ending at a point about 110 yards west of the junction of Knightsbridge and Grosvenor Place;

The Underpass (southern tunnel). A tunnel starting by a junction with the end of the Underpass (Piccadilly approach) and ending at a point about 110 yards west of the junction of Knightsbridge and Grosvenor Place; and

The Underpass (Knightsbridge approach). A new street starting at a point about 106 yards east of the junction of Wilton Place and Knightsbridge and ending by a junction with the ends of the said tunnels.

The Underpass (ventilating tunnel). A tunnel for the ventilation of the underground parts of the Underpass, starting at a point about 65 yards north-west of the Wellington Arch and ending immediately under the said Arch.

The Tyburn link. A new street starting by a junction with Marble Arch at a point about 10 yards east of the junction of Marble Arch and Edgware Road and ending by a junction with the Hyde Park carriageway at a point about 135 yards west of the junction of Park Lane and North Row.

The Marble Arch processional route. A new street starting at the junction of Oxford Street and Marble Arch and ending by a junction with the Hyde Park carriageway at a point about 55 yards west of the junction of Park Lane and North Row.

The North Row link. A new street starting at the junction of Park Lane and North Row and ending by a junction with the Hyde Park carriageway at the junction thereof with the Marble Arch processional route.

The Brook Street Gate link. A new street starting by a junction with Park Lane at the junction thereof with Upper Brook Street and ending by a junction with the Hyde Park carriageway at a point about 63 yards south-west of the junction of Park Lane and Upper Brook Street.

The Grosvenor Gate link. A new street starting by a junction with Park Lane at the junction thereof with Upper Grosvenor Street and ending by a junction with the Hyde Park carriageway at a point about 45 yards west of the junction of Park Lane and Upper Grosvenor Street.

The Stanhope Gate link. A new street starting by a junction with Park Lane at Stanhope Gate and ending by a junction with the Hyde Park carriageway at a point about 37 yards south-west of the junction of Park Lane and Stanhope Gate.

The Apsley carriageway. A new street starting by a junction with Park Lane at a point about 27 yards south-east of the junction of Park Lane and Curzon Street and

ending by a junction with Piccadilly at a point about 95 yards west of the junction of Piccadilly and Hamilton Place.

The northern Apsley link. A new street starting by a junction with the Apsley carriageway at a point about 57 yards south-east of the junction of Park Lane and Curzon Street and ending by a junction with the Hyde Park carriageway at a point about 100 yards south of the Stanhope Gate.

The central Apsley link. A new street starting by a junction with the Apsley carriageway at a point about 230 yards north-east of the junction of Knightsbridge and Grosvenor Place and ending by a junction with the Hyde Park carriageway at a point about 217 yards north of the junction of Knightsbridge and Grosvenor Place.

The southern Apsley link. A new street starting by a junction with the Apsley carriageway at a point about 163 yards north-east of the junction of Knightsbridge and Grosvenor Place and ending by a junction with the Hyde Park carriageway at a point about 145 yards north of the junction of Knightsbridge and Grosvenor Place.

The Green Park carriageway. A new street starting by a junction with Piccadilly at a point about 40 yards east of the junction of Piccadilly and Down Street and ending by a junction with Grosvenor Place at a point about 57 yards south-east of the junction of Grosvenor Place and Grosvenor Crescent.

The Wellington Arch processional route. A new street starting by a junction with Constitution Hill at the junction thereof with the Green Park carriageway and ending at a point about 20 yards east of the junction of Knightsbridge and Grosvenor Place.

The Knightsbridge widening. A widening of Knightsbridge on the northern side starting at the junction of Knightsbridge and Grosvenor Place and ending at the junction of Knightsbridge and Wilton Place.

The northern Tyburn subway. A subway for pedestrians, passing under Bayswater Road at an angle of about 90 degrees thereto, at a point about 45 yards west of the junction thereof with Edgware Road.

The southern Tyburn subway. A subway for pedestrians, passing under the Hyde Park carriageway at an angle of about 90 degrees thereto, at a point about 57 yards west of the junction thereof with the Tyburn link.

The eastern Tyburn subway. A subway for pedestrians, passing under the Tyburn link at an angle of about 90

degrees thereto, at a point about 40 yards south of the junction thereof with Marble Arch.

The North Row subway. A subway for pedestrians, starting at a point under the western side of the Hyde Park carriageway about 73 yards south-west of the junction of Park Lane and North Row and ending at a point about 35 yards west of the said junction.

The Green Street subway. A subway for pedestrians, starting under the western side of the Hyde Park carriageway at a point about 167 yards south of the Marble Arch and ending under the eastern side of Park Lane at a point about 20 yards south of the junction thereof with Green Street.

The Aldford Street subway. A subway for pedestrians, starting under the western side of the Hyde Park carriageway at a point about 53 yards south-west of the junction of Park Lane and Aldford Street, and ending at a point under Aldford Street at the junction thereof with Park Lane.

The Pitt's Head Mews subway. A subway for pedestrians, starting at a point under the western side of the Hyde Park carriageway about 92 yards west of the junction of Park Lane and Pitt's Head Mews and ending at a point under Park Lane near the junction thereof with Pitt's Head Mews.

The Hamilton Gardens subway. A subway for pedestrians, passing under the southern Apsley link at an angle of about 90 degrees thereto, at a point about 40 yards east of the junction thereof with the Hyde Park carriageway.

The Piccadilly subway (Part I). A subway for pedestrians, passing under the Apsley carriageway at an angle of about 90 degrees thereto, at the junction thereof with Piccadilly.

The Piccadilly subway (Part II). A subway for pedestrians, starting by a junction with the Piccadilly subway (Part I) at a point about half way along the length thereof and ending at a point about 30 yards south of that junction.

The Green Park subway. A subway for pedestrians, passing under the Green Park carriageway at an angle of about 90 degrees thereto, at a point about 113 yards east of the Wellington monument.

The Grosvenor Place subway (Part I). A subway for pedestrians, passing under Grosvenor Place at an angle of about 90 degrees thereto, at a point about 35 yards south of the junction thereof with Grosvenor Crescent.

The Grosvenor Place subway (Part II). A subway for pedestrians, starting at a point under the south side of the

Green Park carriageway at the junction thereof with Grosvenor Place and ending by a junction with the Grosvenor Place subway (Part I) at a point about half way along the length thereof.

The Hyde Park Corner subway. A subway for pedestrians, starting at a point under the footway at the corner of Knightsbridge and Grosvenor Place and ending under Grosvenor Place at a point about 30 yards eastwards of the said point.

2.—(1) The Council shall not carry out the works specified in section one of this Act otherwise than in the lines or situations and according to the levels shown on the plans and sections deposited in connection with the Bill for this Act with the Clerk of the Council on the thirteenth day of November, nineteen hundred and fifty-seven, and the seventeenth day of January, nineteen hundred and fifty-eight (in this Act respectively referred to as “the deposited plans” and “the deposited sections”).

Works to be carried out in accordance with deposited plans and sections.

Provided that, subject to the provisions of this Act, it shall be lawful, in the carrying out of the said works, to deviate from the lines or situations shown on the deposited plans to the limits of deviation so shown, and to deviate from the levels shown on the deposited sections to the extent of five feet upwards and to any extent which may be found necessary or convenient downwards.

(2) The references in the plans and sections deposited in connection with the Bill for this Act with the Clerk of the Council on the thirteenth day of November, nineteen hundred and fifty-seven, to the Underpass, the Underpass (ventilating tunnel) and the Knightsbridge widening, having been superseded by the references thereto in the plan and sections so deposited on the seventeenth day of January, nineteen hundred and fifty-eight, shall be deemed to be omitted from the said plans and sections.

3.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans, the Council, in connection with and for the purposes of any of the works specified in section one of this Act, may—

Power to carry out subsidiary works, etc.

- (a) divert, widen, or otherwise alter the line or level of any street;
- (b) raise, sink or otherwise alter the position of any of the steps, areas, cellars, cellar-flaps, pavement-lights, gratings, boundary-walls, railings, fences, windows, sewers, drains, watercourses, pipes, spouts or wires belonging to or connected with any building, and remove any other obstruction;

- (c) remove or alter any drinking-fountain, lamp-post, street-refuge or other erection ;
- (d) carry out works (not being the underpinning or other strengthening of a building) for the protection of any adjoining land or building ;
- (e) provide and instal street lighting equipment, traffic signs, guard-rails and places of refuge, and erect fences and walls ;
- (f) plant trees, shrubs and other vegetation ; and
- (g) carry out works for improving the appearance of a part of any adjoining building exposed by the taking down or alteration by the Council of any building.

(2) Subject as aforesaid and within the said limits of deviation, the Council, in relation to any street island formed by the carrying out of the works specified in section one of this Act, may—

- (a) alter the level of the island and provide it with a paved or other surface ;
- (b) provide and instal street lighting equipment and traffic signs, and erect guard-rails, fences and walls ;
- (c) provide and instal seats, ornamental pools, fountains, statues and monuments ; and
- (d) plant trees, shrubs and other vegetation.

(3) Subject as aforesaid and within the said limits of deviation, the Council may provide and instal apparatus for lighting, ventilating and draining the Underpass, and may, for the purpose of providing for the ventilation of the Underpass, carry out structural alterations to the Wellington Arch :

Provided that any alteration by the Council to the Wellington Arch shall be carried out to the satisfaction of the Minister of Works and shall not be such as to affect the appearance of the said Arch from the ground.

(4) Subject as aforesaid and within the said limits of deviation the Council, in connection with and for the purposes of any of the subways specified in section one of this Act, may make junctions and communications with any existing street, subway or place adjacent to any of the said subways.

(5) Subject to the provisions of the Schedule to this Act, the Council may underpin or otherwise strengthen any building within 100 feet of the Underpass or of the Underpass (ventilating tunnel) or of any of the subways specified in section one of this Act.

(6) In exercising their powers under paragraphs (b), (d) and (g) of subsection (1) of this section the Council shall cause as little

inconvenience to the occupiers of the land or building in question as the circumstances of the case will admit.

(7) The Council shall not exercise their powers under the said paragraph (g) except by agreement with the owner and lessee of the building in question.

4.—(1) The Council may, with the consent of the Minister of Works, enter upon and use such land comprised in Hyde Park and the Green Park as they may require for or in connection with the carrying out of any of the authorised works. Works in
Hyde Park
and the
Green Park.

(2) The Minister of Works may from time to time give directions to the Council—

- (a) as to the manner in which any building, fence, gate or other structure on land entered upon under the preceding subsection is to be taken down or altered by the Council for or in connection with the carrying out of the authorised works, and requiring them to deliver to a person authorised by him in that behalf such of the materials of any structure so taken down or altered as may be specified in the directions;
- (b) otherwise regulating the manner in which land so entered upon is used by the Council for or in connection with the carrying out of the authorised works; and
- (c) requiring the Council to vacate land so entered upon (not being land forming the site of any of the authorised works) on or before a date specified in the directions, and to restore the land as nearly as may be practicable to its former condition before it is vacated,

and the Council shall comply with any directions so given.

(3) Nothing in the preceding provisions of this Act shall be taken to entitle the Council to take possession of any land entered upon under subsection (1) of this section, or to affect the operation, in relation to such land, of the Parks Regulation Acts, 1872 and 1926, or regulations made thereunder, but the Minister of Works may, if he thinks fit, by order adapt or supplement the said regulations for the purpose of making such provision as he may consider necessary or expedient in connection with the carrying out of the authorised works.

(4) The power to make orders under the last preceding subsection shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament; and any order made under the said subsection may be varied or revoked by a subsequent order made thereunder.

**Incorporation
of Lands
Clauses Acts.**

5. The Lands Clauses Acts (other than the excepted provisions), in so far as they are applicable for the purposes of this Act and are not inconsistent with the provisions thereof, are hereby incorporated with this Act ; and in construing those Acts as so incorporated this Act shall be deemed to be the special Act and references to the promoters of the undertaking shall be construed as references to the Council.

In this section " the excepted provisions " means the following provisions of the Act of 1845, namely section ninety-two (which provides that no person shall be required to sell part only of a building), sections one hundred and twenty-seven to one hundred and thirty-two (which relate to the sale of superfluous land), section one hundred and thirty-three (which provides for making good deficiencies in local rates) and sections one hundred and fifty and one hundred and fifty-one (which relate to access to the special Act).

**Power to
acquire land.**

6.—(1) The Council are hereby authorised to acquire by agreement any interest, being an interest vested in the Crown, in such of the Piccadilly lands, the Knightsbridge lands and the Hamilton Place lands as may be required for the construction of the Apsley carriageway, the Underpass, the Hyde Park Corner subway and the Piccadilly subway (Parts I and II).

(2) Subject to the provisions of this Act, the Council are hereby authorised to acquire either compulsorily or by agreement the following interests in land—

- (a) any interest (other than an interest vested in the Crown) in such of the Piccadilly lands and the Hamilton Place lands as may be required for the construction of the Apsley carriageway and the Piccadilly subway (Parts I and II) ;
- (b) any interest (other than an interest vested in the Crown) in such of the Knightsbridge lands as may be required for the construction of the Underpass, the Hyde Park Corner subway and the Knightsbridge widening ;
- (c) any interest in such of the Grosvenor Place lands as may be required for the construction of the Grosvenor Place subway (Part I) ;
- (d) any interest in such of the Park Lane lands as may be required for the construction of the Green Street subway ; and
- (e) any interest in such of the Bayswater lands as may be required for the construction of the northern Tyburn subway.

(3) No person shall be required by virtue of this section to sell an interest in a part only of any house or other building, or of

a garden belonging to a house, if he is willing and able to sell an equivalent interest in the whole of the building or garden unless the Lands Tribunal determines—

- (a) in the case of a building, that such part as is proposed to be taken can be taken without material detriment to the remainder of the building ; or
- (b) in the case of a garden, that such part as is proposed to be taken can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(4) In this section—

- “ the Bayswater lands ” means the lands situate in the metropolitan borough of Paddington which are delineated on the deposited plans and described in the book of reference deposited on the thirteenth day of November, nineteen hundred and fifty-seven, and therein numbered in relation to the said borough 2 ;
- “ the Grosvenor Place lands ” means the lands situate in the city of Westminster which are delineated on the deposited plans and described in the book of reference deposited on the said thirteenth day of November and therein numbered in relation to the said city 39 and 40 ;
- “ the Hamilton Place lands ” means the lands situate in the city of Westminster which are delineated on the deposited plans and described in the book of reference deposited on the said thirteenth day of November and therein numbered in relation to the said city 23 and 24 ;
- “ the Knightsbridge lands ” means the lands situate in the city of Westminster which are delineated on the deposited plans and described in the book of reference deposited on the seventeenth day of January, nineteen hundred and fifty-eight, and therein numbered in relation to the said city 30 to 34, 36 and 44 to 48 ;
- “ the Park Lane lands ” means the lands situate in the city of Westminster which are delineated on the deposited plans and described in the book of reference deposited on the thirteenth day of November, nineteen hundred and fifty-seven, and therein numbered in relation to the said city 9 ;
- “ the Piccadilly lands ” means the lands situate in the city of Westminster which are delineated on the deposited plans and described in the book of reference deposited on the said thirteenth day of November and therein numbered in relation to the said city 25.

Supplemental provisions as to acquisition of land.

7.—(1) Any person authorised by the Council in that behalf may at all reasonable times enter on any land an interest in which may be acquired under section six of this Act for the purpose of surveying or valuing the land :

Provided that no land shall be entered on under this subsection unless the Council, not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry, have given notice to the owner and occupier of the land.

(2) At any time after serving a notice to treat in respect of any land an interest in which may be acquired compulsorily under the said section six, but not less than two months after giving the owner and occupier thereof notice of their intention to exercise the powers of this subsection, the Council may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections eighty-four to ninety of the Act of 1845 (which prohibit entry before payment of compensation or a deposit):

Provided that the Council shall pay the like compensation for land of which possession is taken under this subsection and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

(3) Any private right of way over land an interest in which may be acquired compulsorily under the said section six shall be extinguished on the acquisition thereunder (whether compulsorily or by agreement) of any such interest; and any person who suffers loss by reason of the extinguishment thereof shall be entitled to be paid by the Council compensation to be determined under and in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919.

(4) In determining any question of disputed compensation or purchase money in respect of an interest in land acquired compulsorily under the said section six the Lands Tribunal shall not take into account—

(a) any improvement or alteration made or building erected after the fourteenth day of November, nineteen hundred and fifty-seven, or

(b) any interest in the land created after that date,

which in the opinion of the tribunal was not reasonably necessary and was made, erected or created with a view to obtaining or increasing the compensation or purchase money.

(5) In relation to any of the lands situate in the city of Westminster which are delineated on the deposited plans and

described in the book of reference deposited on the seventeenth day of January, nineteen hundred and fifty-eight, and therein numbered in relation to the said city 44 to 48, the last preceding subsection shall have effect as if, for the reference in paragraph (a) thereof to the fourteenth day of November, nineteen hundred and fifty-seven, there were substituted a reference to the said seventeenth day of January.

8. Subject to the provisions of this Act, the Council may enter upon, take, use and appropriate so much of the subsoil and under-surface of any street within the limits of deviation shown on the deposited plans as is necessary for the carrying out of any of the authorised works without being required to purchase the said subsoil or under-surface or any easement therein or thereover. Power to use subsoil of streets.

9.—(1) Subject to the provisions of this Act, the Council may for the purpose of carrying out the authorised works and within the limits of deviation shown on the deposited plans temporarily stop up, open, break up or interfere with, or alter or divert, the whole or any part of any street or subway, and may carry out and do all necessary works and things for or in connection with the stopping up, opening, breaking up, interference, alteration or diversion, and for keeping the street or subway open for traffic. Temporary interference with streets and subways.

(2) The Council shall provide reasonable access for all persons going to or returning from premises in any street affected by the exercise of the powers conferred by this section.

10.—(1) Where the site of any of the authorised works consists of or comprises a street, the Council, for the purposes of the said work, may, within the limits of deviation shown on the deposited plans, permanently stop up or divert the street or otherwise permanently alter the public rights of way thereover: Permanent stopping up, etc., of streets.

Provided that the Council shall not so exercise their powers under this subsection as to prevent vehicles and pedestrians passing between Park Lane and Hertford Street or between Park Lane and Pitt's Head Mews.

(2) On the stopping up or diversion of a street under this section any private right of way thereover shall be extinguished, and any person who suffers loss by reason of the extinguishment thereof shall be entitled to be paid by the Council compensation to be determined under and in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919.

11. Subject to the provisions of this Act, the Council may pump any water found by them in the carrying out of the authorised works, and may use for the discharge of any such Powers as to underground water.

water any available stream, watercourse, sewer or drain, and for that purpose may within the limits of deviation shown on the deposited plans lay down, take up and alter conduits, pipes and other works and make any convenient connections with any stream, watercourse, sewer or drain.

Application of
Public Utilities
Street Works
Act, 1950.

12. In relation to any of the authorised works to which, apart from this section, the provisions contained in Part II of the Public Utilities Street Works Act, 1950 (which regulate the relations between an authority carrying out road alterations and undertakers whose apparatus is affected thereby) would not apply, the said provisions shall apply as if the works were executed in a street for road purposes and were mentioned in paragraph (a) of subsection (1) of section twenty-one of that Act.

Correction
of errors in
deposited
plans or
book of
reference.

13.—(1) If any omission, mis-statement or wrong description of any land or of the owner, lessee or occupier of any land is found to have been made in the deposited plans or in a book of reference, the Council, after giving ten days' notice to the owner, lessee and occupier of the land in question may apply to a metropolitan stipendiary magistrate for the correction thereof.

(2) If on any such application it appears to the magistrate that the omission, mis-statement or wrong description arose from mistake he shall certify the fact accordingly and shall in his certificate state the particulars of the omission or in what respect any matter is mis-stated or wrongly described.

(3) Any such certificate shall be deposited with the clerk of the Council and a copy thereof shall be deposited with the clerk of the metropolitan borough in which the land in question is situated, and thereupon the deposited plans or the book of reference, as the case may be, shall be deemed to be corrected according to the certificate and it shall be lawful for the Council in accordance with the certificate to proceed under this Act as if the said plans or book had always been in the corrected form.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the documents to which it relates.

Consequential
works in
relation to
property
controlled by
Minister of
Works.

14.—(1) This section applies to works in relation to property vested in or under the control of the Minister of Works, being works the carrying out of which is, in the opinion of that Minister, necessary or expedient in consequence of the carrying out of the authorised works, including,—

- (a) the erection, taking down or re-erection of buildings, fences, gates or other structures,
- (b) the re-alignment of roads, and
- (c) the moving of statues and monuments.

(2) The Council may agree with the Minister of Works for the carrying out by them without expense to that Minister of any works to which this section applies.

(3) The Council shall pay to the Minister of Works an amount equal to the sum of—

(a) the expenses incurred by the said Minister in making provision (otherwise than by an agreement under the last preceding subsection) for the carrying out of any works to which this section applies, and

(b) the general administrative expenses of the said Minister which are attributable to the making of such provision.

(4) Notwithstanding anything contained in the Wellington Museum Act, 1947 (which vests in the Minister of Works the property forming Apsley House and the site, forecourt and garden thereof, and imposes on that Minister certain duties with respect to the maintenance of the said property), but without prejudice to the powers of the Minister of Works under that Act, that Minister, if in his opinion it is necessary or expedient to do so in consequence of the carrying out of the authorised works, may provide, whether by an agreement under subsection (2) of this section or in any other manner, for the taking down of the projecting structure on the south-eastern corner of the front of Apsley House and for the incorporation in the footway, to such extent as he thinks fit, of the site of the said structure and of the forecourt of Apsley House.

15.—(1) When any of the authorised works is completed a certificate thereof shall be issued under the seal of the Council, and any duly authenticated copy of the certificate shall in all proceedings and for all purposes be admissible and received as evidence that the certificate has been duly made and that the work to which the certificate relates has been completed. Improvements to become highways.

(2) Where a certificate issued under the preceding subsection relates to a work which consists of or comprises a carriageway, footway, subway or street island, or any part thereof, the carriageway, footway, subway or street island or that part thereof, as the case may be, shall, subject to the provisions of this Act, be or form part of a highway repairable by the inhabitants at large, and may, subject as aforesaid, be used by the public:

Provided that this subsection shall not apply to the Marble Arch processional route or the Wellington Arch processional route.

(3) Where by virtue of the last preceding subsection the Underpass becomes a highway repairable by the inhabitants at large the functions of maintenance and the other functions of a highway authority in relation thereto shall be exercised by the Council and not by the Westminster City Council:

Provided that the Council may by agreement with the Westminster City Council transfer the functions conferred on

them by this subsection to the Westminster City Council, and on the making of such an agreement the Council shall cease to be the highway authority for the Underpass and the Westminster City Council shall become the highway authority therefor.

(4) The Westminster City Council shall be under a duty to maintain the Marble Arch processional route and the Wellington Arch processional route, and section eighty-six of the Public Health (London) Act, 1936 (which provides for the cleaning and watering of streets) shall apply in relation thereto as it applies in relation to streets which are repairable by the inhabitants at large.

The Westminster City Council shall not be under any greater liability in respect of non-repair of the said processional routes than they would be under if those routes were highways repairable by the inhabitants at large.

(5) If, within the period of five years immediately following the issue of a certificate in respect of a work under subsection (1) of this section, any subsidence of the work occurs the Council may, if an authority other than the Council is under a duty to maintain the work at the time of the subsidence, contribute towards the expenses incurred by that authority in making good the work.

Provisions as to parkland forming site of, or adjacent to, new highways.

16.—(1) At such time as any land comprised in Hyde Park or the Green Park becomes by virtue of section fifteen of this Act the site of a highway, the land shall cease to form part of the said park.

(2) On the completion of the Marble Arch processional route the land forming the site thereof, being land comprised in Hyde Park, shall cease to form part of the said park; and on the completion of the Wellington Arch processional route, the land forming the site thereof, being land comprised in the Green Park, shall cease to form part of the said park.

(3) At such time as the Apsley carriageway becomes by virtue of section fifteen of this Act a highway, the lands comprised in Hyde Park and situated to the east of the said carriageway, being the lands delineated on a map to which the official seal of the Minister of Works was affixed on the fourth day of November, nineteen hundred and fifty-seven, and thereon coloured pink, shall cease to form part of the said park.

(4) At such time as any land ceases by virtue of this section to form part of Hyde Park or the Green Park the functions of the Minister of Works in relation to that land shall determine and, subject to the following provisions of this section, the Crown Estate Commissioners shall assume the management thereof and the Crown Lands Acts, 1829 to 1936, and the

Crown Estate Act, 1956, together with any enactment for the time being modifying those Acts, shall have effect accordingly:

Provided that this subsection shall not apply as respects the functions of the Minister of Works in relation to the maintenance of the Wellington Arch and the Marble Arch, and, subject to the provisions of this Act, that Minister shall continue to exercise those functions notwithstanding that the land forming the sites of the said Arches has ceased to form part either of Hyde Park or the Green Park.

(5) Nothing in the last preceding subsection shall be taken to entitle the said Commissioners to do any act which is likely to prejudice either the use and enjoyment by the public of a highway situated on land referred to in that subsection or the exercise of the functions of the Council and the highway authority in relation to the highway:

Provided that no improvement of the highway which necessitates any permanent interference with the land below the surface thereof shall be carried out by the Council or the said highway authority except under authority conferred by Order of Her Majesty in Council.

An Order in Council made under this subsection shall be laid before Parliament after being made.

(6) Nothing in subsection (4) of this section shall be taken to entitle the said Commissioners to do any act which is likely to prejudice the exercise of the functions of the Westminster City Council under subsection (4) of section fifteen of this Act.

(7) The map referred to in subsection (3) of this section shall be deposited as soon as may be after the passing of this Act in the Office of Land Revenue Records and Inrolments, and a copy thereof shall be kept at their respective offices by the Crown Estate Commissioners and the Minister of Works.

17.—(1) At such time as, by virtue of section fifteen of this Act, the Apsley carriageway becomes a highway, any land situate to the west thereof, being land comprised in the Piccadilly lands, shall, if all interests therein are then vested in the Crown, become part of Hyde Park and accordingly be thereafter under the management of the Minister of Works.

Certain land to become part of Hyde Park.

(2) In this section "the Piccadilly lands" has the same meaning as in section six of this Act.

18.—(1) The Council may make and enforce byelaws for the regulation, control and protection of the Underpass and of persons resorting to or using it, and for the management, regulation, direction and control of traffic passing through it.

Power to make byelaws as respects the Underpass.

(2) Without prejudice to the generality of the preceding subsection, byelaws made for the purposes mentioned therein—

- (a) may impose a speed limit for motor vehicles and prohibit or restrict the passage of particular traffic either generally or during specified hours, and

(b) notwithstanding anything contained in any enactment, may prohibit or restrict the laying of mains, pipes and wires and the carrying out of work in connection therewith.

(3) For the purposes of the provisions contained in section one hundred and forty-seven of the London Government Act, 1939 (which regulate the procedure for making byelaws) the Minister of Transport and Civil Aviation shall be the confirming authority as respects byelaws made under this section.

(4) If, by an agreement made under subsection (3) of section fifteen of this Act, the functions of a highway authority in relation to the Underpass are transferred from the Council to the Westminster City Council then, as from the date of the making of the agreement, this section shall have effect as if, in subsection (1) thereof, for the reference to the Council there were substituted a reference to the Westminster City Council:

Provided that nothing in this subsection shall affect the operation of byelaws made under this section in relation to anything done before the said date; and byelaws so made which were in force immediately before that date shall continue in force as if made by the Westminster City Council and may be revoked or varied accordingly.

(5) In this section "traffic" includes pedestrians and animals.

Maintenance
of Underpass
ventilating
system.

19.—(1) The highway authority for the Underpass shall be under a duty to maintain the Underpass (ventilating tunnel) and any works carried out under section three of this Act for the purpose of providing for the ventilation of the Underpass.

(2) The said authority, in discharging their duty under this section, shall not carry out work involving interference with the Wellington Arch or with land under or within 10 yards (measured in any direction) of the said Arch except with the consent and to the satisfaction of the Minister of Works.

(3) Where it appears to the Minister of Works that repairs are needed for safeguarding the structure of the Wellington Arch or otherwise in connection therewith and that the repairs ought to have been carried out by the said authority in discharge of their duty under this section, the Minister, after giving twenty-eight days' notice to the authority (or in the case of emergency such notice as may be practicable), may provide for the carrying out of the repairs and may recover the reasonable cost thereof from the authority.

Power of
Minister of
Works to
erect stands.

20.—(1) Notwithstanding anything contained in section fifteen or section sixteen of this Act, the Minister of Works shall have power to erect stands on any street island formed by the carrying out of the works specified in section one of this Act

and on the western footway of the Hyde Park carriageway, and to do anything necessary or expedient in connection therewith, for the purpose of providing for the viewing of any public procession or other event.

(2) As soon as may be after the occurrence of the event for which a stand has been erected under this section the said Minister shall remove the stand and restore the site thereof as nearly as may be practicable to its former condition.

(3) The functions of the said Minister under this section shall not be so exercised as to prevent pedestrians passing freely and in safety along the western footway of the Hyde Park carriageway or to and from any subway.

21.—(1) The Minister of Transport and Civil Aviation may, with the consent of the Treasury, make grants towards meeting any expenses incurred by or on behalf of the Council in or by reason of the exercise of the functions conferred on them by this Act, and any such grants may be made subject to such conditions as the said Minister with the approval of the Treasury may determine: Financial provisions.

Provided that this subsection shall not apply as respects expenses incurred by the Council in making contributions under subsection (5) of section fifteen of this Act.

(2) Any expenses incurred by the Minister of Transport and Civil Aviation or the Minister of Works under this Act shall be defrayed out of moneys provided by Parliament.

(3) Any receipts of the Minister of Works under subsection (3) of section fourteen of this Act shall be paid into the Exchequer.

22.—(1) As soon as may be after a street has been permanently stopped up or diverted by the Council under the powers conferred by this Act the Council shall give notice thereof to the Postmaster General. For protection of Postmaster General.

(2) Where any street has been so stopped up or diverted, the following provisions of this subsection shall have effect in relation to so much of any telegraphic line belonging to or used by the Postmaster General as is under, in, upon, over, along or across the land which by reason of the stopping up or diversion has ceased to be a street (in those provisions referred to as "the affected line"), that is to say—

- (a) the power of the Postmaster General to remove the affected line shall be exercisable notwithstanding the stopping up or diversion, so however that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of three months from the giving of notice of

the stopping up or diversion under the preceding subsection unless before the expiration of that period the Postmaster General has given notice to the Council of his intention to remove the affected line or that part thereof, as the case may be ;

- (b) the Postmaster General may by notice to the Council in that behalf abandon the affected line or any part thereof, and shall be deemed, as respects the affected line or any part thereof, to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it ;
- (c) the Postmaster General shall be entitled to recover from the Council the expense of providing in substitution for the affected line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line, a telegraphic line in such other place as he may require ;
- (d) where under paragraph (b) of this subsection the Postmaster General has abandoned the whole or any part of the affected line it shall vest in the Council and the provisions of the Telegraph Acts, 1863 to 1954, shall not apply in relation to it as respects anything done or omitted after the abandonment thereof.

(3) The temporary stopping up or diversion of a street under the powers conferred by section nine of this Act shall not prejudice or affect the right of the Postmaster General—

- (a) to maintain, inspect, repair, renew or remove any telegraphic line belonging to or used by him which at the time of the stopping up or diversion was under, in, upon, over, along or across the street, or
- (b) for the purpose of such maintenance, inspection, repair, renewal or removal, to enter upon or break open the street.

(4) In this section “ telegraphic line ” has the same meaning as in the Telegraph Act, 1878.

For protection
of British
Transport
Commission.

23.—(1) In this section—

- “ the Commission ” means the British Transport Commission ;
- “ the engineer ” means an engineer to be appointed by the Commission ;
- “ plans ” includes sections and descriptions ;
- “ railway property ” means land belonging to or occupied by the Commission, including the railways and railway works of the Commission ;

“ the relevant works ” means so much of any of the authorised works or works under section nine of this Act as is or, when completed, will be within a distance from railway property (measured in any direction) of, in the case of surface works, 10 feet or, in the case of the Underpass or any other underground works, 50 feet.

(2) The Council shall not, under the powers of this Act, acquire compulsorily any lands of the Commission but the Council may acquire compulsorily such easements and rights in the lands of the Commission as they may reasonably require for the purposes of the relevant works.

(3) The Council shall, except in case of emergency, give the engineer twenty-eight days' notice of their intention to commence any of the relevant works, and those works shall be carried out with all reasonable despatch under the supervision (if given) and to the reasonable satisfaction of the engineer in accordance with plans (in this section referred to as “ the approved plans ”)—

- (a) which have been approved by the engineer, or
- (b) as respects which the engineer has not, within twenty-eight days after the plans have been delivered by the Council to the Commission, given notice to the Council either approving or rejecting them, or
- (c) which, after being rejected by the engineer, have been settled by arbitration under this section.

(4) The Council shall not, in carrying out any of the relevant works, cause avoidable damage to railway property or unnecessarily interfere with the conduct of traffic on the railways of the Commission or the use by passengers of railway property; and if, in carrying out any of those works, the Council cause damage to railway property or interfere with the conduct of traffic on the railways of the Commission or the use by passengers of railway property, then, notwithstanding that the works were carried out in accordance with the approved plans and to the satisfaction of the engineer, the Commission shall be entitled to recover from the Council the amount of any loss thereby suffered by the Commission.

(5) The Council shall afford reasonable facilities to the engineer for access to any of the relevant works while they are being carried out by the Council and shall supply to the engineer all such information as he may reasonably require with regard to those works.

(6) If the nature of any of those of the relevant works which consist of underground works is such that it is reasonable that any part thereof should be carried out by the Commission instead of by the Council, and the Commission give notice to the Council

to that effect within twenty-eight days after the plans of the relevant works have been delivered, with a view to their approval by the engineer, by the Council to the Commission, then—

(a) if the Council desire that part to be carried out it shall be carried out by the Commission, acting as agents of the Council, in accordance with the approved plans, and with all reasonable despatch, and

(b) the Commission shall be entitled to recover the reasonable cost of carrying it out from the Council.

(7) If it appears to the Commission that the nature of any of the relevant works is such that it is reasonable that, before the work is carried out, preliminary work should be carried out to ensure the stability of railway property or protect it from injury, or to avoid delay or other inconvenience to railway passengers, and the Commission give notice to the Council to that effect, specifying the required preliminary work, within twenty-eight days after the plans of the relevant work have been delivered, with a view to their approval by the engineer, by the Council to the Commission, then—

(a) the preliminary work shall be carried out by the Commission with all reasonable despatch,

(b) the Council shall not commence the relevant works until the engineer has given them notice that the preliminary work has been completed, and

(c) the Commission shall be entitled to recover the reasonable cost of carrying out the preliminary work from the Council.

(8) The Commission shall be entitled to recover from the Council any expenses incurred by the Commission—

(a) in respect of the employment of persons whom it may be necessary or desirable to appoint for inspecting or watching any railway property affected by the carrying out of the relevant works and for preventing or dealing with any interference, obstruction or danger arising in the course of carrying out those works; and

(b) in providing lighting on railway property, being lighting made necessary or desirable by the carrying out of those works.

(9) If, during the period beginning with the commencement of the relevant works and ending twelve months after the completion of those works, any alteration or addition to railway property situated within or adjacent to the limits of deviation shown on the deposited plans is, in the opinion of the Commission, made necessary by reason of the carrying out of the relevant works, the Commission shall give to the Council twenty-eight days' notice (or in the case of emergency such notice as may be practicable)

able) before beginning to carry out that alteration or addition and shall be entitled to recover from the Council the reasonable cost of carrying it out; and if the alteration or addition is likely to give rise to an increase or a reduction in the cost of maintaining, working and renewing such railway property as aforesaid the Commission shall be entitled to recover from the Council a capital sum equivalent to that increase or, as the case may be, shall pay to the Council a capital sum equivalent to that reduction.

(10) The Commission shall afford reasonable facilities to the Council for access to any works carried out by the Commission under the foregoing provisions of this section and shall supply the Council with all such information as they may reasonably require with regard to those works.

(11) If an authority charged by virtue of this Act with the duty of maintaining any of those of the relevant works which consist of underground works is in default of that duty, the Commission may, after giving reasonable notice of the default to that authority, carry out such work as may be necessary to remedy the default, and shall be entitled to recover the reasonable cost of carrying out that work from the authority in default.

(12) If, by reason of any of the relevant works, damage is caused to railway property or the Commission otherwise suffer loss in relation to their railway undertaking then, notwithstanding that the work in question was carried out by the Commission on behalf of the Council, or was carried out by the Council in accordance with the approved plans and to the satisfaction of the engineer, the Commission shall be entitled to recover from the Council the amount of that loss:

Provided that this subsection shall not apply—

(a) as respects loss arising by reason of a claim made by any person against the Commission unless reasonable notice of the claim was given by the Commission to the Council and, in a case where the claim was compromised, the Council agreed to the compromise;

(b) as respects loss caused by the negligence of the Commission or of any servant or contractor employed by them.

(13) Any dispute arising under this section shall be settled by arbitration.

(14) The Council and the Commission may, by agreement in writing, provide that this section shall have effect as if any provision thereof specified in the agreement were omitted.

24.—(1) In this section—

“apparatus”, in relation to any of the undertakers other than the London Electricity Board, means mains, pipes or other apparatus belonging to or maintained by the

For protection
of certain
statutory
undertakers.

undertakers, or, in relation to the London Electricity Board, means any electric lines or works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by the Board; and, in relation to any of the undertakers, includes works constructed for the lodging therein of apparatus;

“in”, in a context referring to apparatus in a street or other land, includes a reference to apparatus under, over, across, along or upon it;

“the undertakers” means the Metropolitan Water Board, the North Thames Gas Board, the London Hydraulic Power Company and the London Electricity Board, or any of them, as the case may require.

(2) Where, in consequence of the construction of any of the following works, that is to say, the Underpass, the Underpass (ventilating tunnel) and any subway constructed under section one of this Act, apparatus situated in or adjacent to land forming the site of that work is required to be so diverted as to pass under the work, then—

(a) the undertakers shall be entitled to recover from the Council any additional expenses reasonably incurred by the undertakers in consequence of the diversion in breaking open or reinstating any street or in inspecting, maintaining, repairing, removing or renewing the apparatus, and

(b) without prejudice to the generality of the preceding paragraph, the North Thames Gas Board shall be entitled to recover from the Council any expenses reasonably incurred by that Board in providing, installing, inspecting and maintaining any siphon the provision of which is necessary in consequence of the diversion.

(3) Where a street in which apparatus is situated has been permanently stopped up or diverted by the Council under the powers conferred by this Act the undertakers shall continue to have the same powers and rights in respect of the apparatus remaining in the land which by reason of the stopping up or diversion has ceased to be a street as they would have had if it had remained a street:

Provided that the undertakers shall, if the Council reasonably so require—

(a) remove the apparatus and relay or replace it in the street (if any) substituted for the street so stopped up or diverted or in such other position as the undertakers may reasonably determine; or

(b) provide in the street (if any) so substituted or in such other position as aforesaid other apparatus in place of the existing apparatus.

(4) The undertakers shall be entitled to recover from the Council any expenses reasonably incurred by the undertakers in carrying out such works as are referred to in the proviso to the last preceding subsection (whether or not the Council have required those works to be carried out), including expenses so incurred in cutting off any apparatus from any other apparatus and in doing any work rendered necessary in consequence of such cutting off or in consequence of the carrying out of the said works:

Provided that subsections (3) and (4) of section twenty-three of the Public Utilities Street Works Act, 1950 (which impose limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the Council under this subsection as if the works in respect of which the payment is to be made were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section twenty-four of the Park Lane Improvement Act, 1958".

(5) The temporary stopping up or diversion of a street under the powers conferred by section nine of this Act shall not prejudice or affect the right of the undertakers—

- (a) to maintain, operate, inspect, repair, renew or remove any apparatus which at the time of the stopping up or diversion was in the street, or
- (b) for the purpose of such maintenance, operation, inspection, repair, renewal or removal to enter upon or break open the street.

(6) In excising their powers under section three of this Act the Council shall cause as little inconvenience in relation to access by the undertakers to apparatus as the circumstances of the case will admit.

(7) Any dispute arising under this section shall be settled by arbitration, and if the parties to the dispute are unable to agree on an arbitrator, the arbitrator shall be such person as may be appointed on the application of a party to the dispute (after notice in writing to the other party thereto) by the President of the Institution of Civil Engineers.

(8) The Council and any of the undertakers may, by agreement in writing, provide that this section shall have effect in relation to those undertakers as if any provision thereof specified in the agreement were omitted.

- Interpretation. 25.—(1) In this Act, unless the context otherwise requires—
- “the Act of 1845” means the Lands Clauses Consolidation Act, 1845;
 - “the authorised works” means the works specified in section one of this Act (including any street island formed by the carrying out of those works), and the works or things for the carrying out or doing of which power is conferred by section three thereof;
 - “book of reference” means a book deposited in connection with the Bill for this Act with the Clerk of the Council containing the names of the owners or reputed owners, lessees or reputed lessees, and occupiers, of lands which may be acquired or used under this Act;
 - “building” includes a wall;
 - “the Council” means the London County Council;
 - “the deposited plans” and “the deposited sections” have the meanings respectively assigned to them by section two of this Act;
 - “functions” includes powers and duties;
 - “street” includes any highway, and any road, lane, footway, square, court, alley or passage, whether a thoroughfare or not, and also includes any part of a street as so defined;
 - “street island” means an area set apart for dividing lines of vehicular traffic;
 - “traffic sign” has the meaning assigned to it by section thirty-five of the Road Traffic Act, 1956;
 - “Westminster City Council” means the mayor, aldermen and councillors of the city of Westminster.
- (2) Except so far as the contrary appears, any reference in this Act to an enactment shall be construed as a reference to that enactment as modified by or under any other enactment.
- (3) Except so far as the contrary appears, the provisions of this Act shall have effect notwithstanding anything contained in any local or private Act or any order or other instrument of local application which has effect by virtue of any Act.
- (4) Subject to the provisions of subsection (5) of section sixteen of this Act, the powers conferred by this Act shall be in addition to and not in derogation of any powers of the Minister of Transport and Civil Aviation, the Minister of Works or the Council apart from this Act.
- (5) All directions and notices authorised or required to be given by this Act shall be in writing.

Short title.

26. This Act may be cited as the Park Lane Improvement Act, 1958.

SCHEDULE

Section 3.

STRENGTHENING OF BUILDINGS

1.—(1) At least ten days' notice shall, except in case of emergency, be given to the owners, lessees and occupiers of any building intended to be strengthened under the provisions of subsection (5) of section three of this Act.

(2) A notice under this paragraph shall be served in the manner prescribed by section nineteen of the Act of 1845.

2. If any owner, lessee or occupier of a building with respect to which a notice has been served under the preceding paragraph gives notice, within seven days after the serving of the notice on him, to the effect that he disputes the necessity of the strengthening, the question of the necessity shall be settled by arbitration.

3. The Council, in respect of any building in relation to which they have exercised the powers conferred by the said subsection (5), shall be liable to compensate the owners, lessees and occupiers thereof for any loss or damage which may result to them by reason of the exercise of the said powers:

Provided that this paragraph shall not apply unless the claim for compensation is made within three months from the occurrence of the loss or damage in question.

4. In any case in which any building has been strengthened under the said subsection (5), the Council may from time to time after the completion of the strengthening and during the execution of the work in connection with which the strengthening was done or within twelve months after the completion of that work, enter upon and survey the building and carry out such further strengthening thereof as they may deem necessary or expedient, or as, in the case of dispute between the Council on the one hand and the owner, lessee or occupier of the building on the other hand, shall be settled by arbitration.

5. If in any such case as is referred to in the last preceding paragraph the strengthening done by the Council shall at any time within twelve months from the completion of the work in connection with which the strengthening was done prove inadequate for the support or protection of the building against further injury arising from the execution of the said work, the Council shall make compensation to the owner, lessee and occupier of the building for that injury:

Provided that this paragraph shall not apply unless the claim for compensation is made within one month from the discovery of the loss or damage in question.

6. Nothing in this Schedule nor any dealing with any property in pursuance of the said subsection (5) shall relieve the Council from liability to compensate under section sixty-eight of the Act of 1845 or under any other Act.

7. Every case of compensation to be ascertained under this Schedule shall be ascertained according to the provisions of the Lands Clauses Acts.

8. Where a dispute is required by this Schedule to be settled by arbitration and the parties to the dispute are unable to agree on an arbitrator, the arbitrator shall be such person as may be appointed by the President of the Institution of Civil Engineers.

Table of Statutes referred to in this Act

Short title	Session and Chapter
Lands Clauses Consolidation Act, 1845	8 & 9 Vict. c. 18.
Telegraph Act, 1878	41 & 42 Vict. c. 76.
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Public Health (London) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 50.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Wellington Museum Act, 1947	10 & 11 Geo. 6. c. 46.
Public Utilities Street Works Act, 1950	14 Geo. 6. c. 39.
Road Traffic Act, 1956	4 & 5 Eliz. 2. c. 67.
Crown Estate Act, 1956	4 & 5 Eliz. 2. c. 73.

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